

Court No. - 3

Case :- WRIT - C No. - 7673 of 2022

Petitioner :- Pankaj Tyagi

Respondent :- State Of U.P. Through Secretary Dep. Energy
And 3 Others

Counsel for Petitioner :- Sanjay Kr. Srivastava

Counsel for Respondent :- C.S.C.,Pranjal Mehrotra

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Jayant Banerji,J.

1. Heard learned counsel for the parties.

2. This writ petition has been filed praying for the following reliefs :

"i) Issue a writ, order or direction in the nature of Certiorari, calling for the record and to quash the order Impugned dated 31.8.2021 [Annexure No.9 to this writ petition] passed by the respondent No.3 directing the petitioner with serious warning for deposit of electricity bill, failing which the electricity connection will be disconnected permanently and a notice under rule 5 of Uttar Pradesh Government Electrical Undertakings (Dues Recovery) Rules, 1958 will also be issued.

ii) Issue a writ, order or direction in the nature of Mandamus commanding the respondent No.3 to issue requisite electricity bill since 1.10.2019 till date in accordance with law within some stipulated period to be specified by this Hon'ble Court, so that the same be deposited by petitioner as early as possible."

3. Learned counsel for the respondent nos.2, 3 and 4/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent no.3 within four weeks from today alongwith a certified copy of this order. In the event, such an

objection is submitted within the stipulated period, it shall be decided by the respondent no.3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 25.5.2022

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